

Multiple Choice (10 marks)

1. Which statement best describes one of Dworkin's central arguments in *Justice for Hedgehogs*?
 - (a) The law is the only guide for ethical behaviour.
 - (b) The law dictates what moral values should affect our ethical behaviour.
 - (c) Morality plays no role in the concept of law.
 - (d) Moral arguments operate only in hard cases.
 - (e) Morality only applies to specific, complex cases.
2. Which case was the first to define the meaning of the doctrine of 'margin of appreciation' as applied by the European Court of Human Rights?
 - (a) *Dudgeon v UK* (1981)
 - (b) *Marckx v Belgium* (1979)
 - (c) *Osman v UK* (1998)
 - (d) *Tyrer v UK* (1978)
 - (e) *McCann v UK* (1995)
3. Do treaties bind third States, ie non-State parties?
 - (a) Treaties do not create obligations or rights for third States without their consent
 - (b) Treaties create both obligations and rights for third States
 - (c) Treaties do not create any rights for third States, even when the latter consent.
 - (d) Treaties may create only obligations for third States
 - (e) Treaties create obligations for third States without their consent
4. What is it called when a remainder in the grantor's heirs is invalid and becomes a reversion in the grantor?
 - (a) Related Doctrine of Merger
 - (b) Contingent remainder
 - (c) Doctrine of Worthier Title
 - (d) Doctrine of Escheat
 - (e) Vested remainder
5. Maine's famous aphorism that 'the movement of progressive societies has hitherto been a movement from Status to Contract' is often misunderstood. In what way?

- (a) His concept of status is misrepresented.
- (b) It is misinterpreted as a prediction.
- (c) His idea is considered inapplicable to Western legal systems.
- (d) It is incorrectly related to economic progression.
- (e) It is taken literally.

True / False (10 marks)

Answer True or False

- 6. True or False: A warranty of merchantability guarantees that a product will meet all the buyer's specific needs without requiring additional advice.
- 7. True or False: The original position (POP) would prioritize wealth over the establishment of a compassionate society.
- 8. True or False: Passive personality jurisdiction is based on the relationship between the victim and the offender.
- 9. True or False: Bentham argued that law is solely a product of moral principles dictated by society's needs.
- 10. True or False: In some jurisdictions, solicitation is defined as a conspiracy to commit a crime, requiring an agreement between multiple parties.

Long Form Response (20 marks)

Answer each question with a clear and complete explanation.

- 11. Critically analyze the strongest argument against ethical relativism's stance on human rights, discussing the role of cognitivism in this context.
- 12. Discuss the legal implications of bid retraction in auction settings, particularly in the context of Cross & Black's liquidation, and analyze how this principle affects bidders' rights.

End of Paper